

United States District Court for the District of South Carolina

Piedmont Booksellers Guild v. City of Norvale

Case No. SYN-DSC-26-CV-0107 Memorandum Opinion and Order Granting Preliminary
Injunction Entered January 23, 2026

The Piedmont Booksellers Guild moves for a preliminary injunction concerning the City of Norvale's Paid-Speaker Permit Ordinance. The City opposes. The Court considered the verified complaint, answer, declarations, municipal materials, site exhibits, stipulated facts and alternatives chart, written submissions, and the January 19 hearing transcript. For the reasons below, the motion is granted.

Preliminary relief is extraordinary. The movant must establish likely success on the merits, likely irreparable harm without relief, a balance of equities in its favor, and consistency with the public interest. Each element must be shown; a court may not replace the required likelihood with a mere possibility and then compensate by adjusting another factor. The present ruling predicts neither final liability nor permanent relief after discovery.

The record concerns recurring free public book fairs, not a completed denial of one speaker because of a viewpoint. The Guild challenges the burdens that arise before a program is final: a forty-five-day submission, names and topics for paid speakers, a recurring base fee and per-speaker charge, and conditions tied to documented risks. The Court evaluates those provisions against the actual Cedar Commons record and the City's retained authority to regulate genuine operational needs.

The Guild has organized Cedar Commons fairs since 2019. A typical fair includes eighteen to twenty-eight booksellers and four to seven authors receiving modest honoraria. Admission and author sessions are free. The parties agree that no violent incident has been attributed to a Guild fair. Two dates produced minor medical responses, and routine congestion has occurred during unloading and near pedestrian routes. City employees and Guild volunteers have addressed those conditions through directions, lane clearance, and ordinary coordination.

The Guild announced six Saturdays for 2026: February 14, April 11, June 13, August 8, October 10, and December 12. Author availability often changes within forty-five days of an event because of publication schedules, travel, caregiving, and sponsorship. The Guild can supply event dates, a site plan, historical attendance, loading information, an emergency contact, and a presentation area before its roster is final. It is willing to update times, formats, equipment, and expected audiences.

Ordinance N-2025-18 applies to recurring events with compensated scheduled speakers. It requires a separate application for each date at least forty-five calendar days in advance, a paid speaker's name, topic, and time, a \$240 base charge, and \$45 per paid speaker. A six-speaker fair therefore carries a \$510 scheduled charge. Written reasons must support a denial or condition based on documented crowd, traffic, or municipal-resource risks. Ordinary vendors who do not address an audience are outside these added provisions.

The City adopted the ordinance after staff identified audience concentration, unloading delay, emergency access, transit interaction, sanitation, and personnel allocation as concerns at recurring events. Those interests are legitimate. A scheduled reading may gather listeners differently from dispersed sales. Presentation time, format, location, equipment, and expected attendance can assist planning. The Court does not infer an improper motive from the ordinance's enactment or early administration.

The legislative record also recognizes the limits of the paid-speaker proxy. Compensation is not a precise measure of crowd size, and an unpaid presenter may draw listeners. Pilot administration involved few applications and no contested denial. Staff time records do not isolate work attributable to each paid speaker. The record shows no inquiry into ideological acceptability, but it also supplies no enacted deadline for deciding a late substitution and no rule separating a change in operational effect from a change only in identity or subject.

The Guild has associational standing at this stage. Its members participate in the recurring fairs, pool funds for honoraria, and face repeated speaker charges and program decisions. The challenged requirements govern the Guild as organizer. The injury is not dependent on speculation that an official will dislike a viewpoint. The cost, lead time, and roster commitment apply on the face of the administrative process and affect invitations now.

Paid author readings, discussions, and questions are protected expression. Compensation does not remove that protection, nor does the sale of books reduce a free literary program to unprotected conduct. Cedar Commons is public property regularly used for community gatherings and expressive activity. The City may coordinate reserved uses and protect safety, but its permit system must respect the constitutional limits applicable to protected speech.

The ordinance is content neutral on the present record. Coverage does not turn on agreement with a subject or viewpoint. A topic description may be general, and the City says it uses that line to identify program format rather than ideological acceptability. No evidence shows that an application was favored or disfavored because of a message. The Court therefore does not apply strict scrutiny based on censorship or speaker viewpoint.

Content neutrality does not end the analysis. A regulation of protected activity still must be appropriately tailored to a significant governmental interest and leave adequate channels. *Billups v. City of Charleston* illustrates that administrative convenience and legitimate public-space concerns do not permit a speech-linked licensing mechanism broader than its demonstrated fit. The precise doctrine depends on forum and regulatory form, but the central tailoring question is concrete: do the challenged burdens correspond sufficiently to the operational interests the City has proved?

On this record, the Guild is likely to show that the paid-speaker trigger and associated burdens are not adequately tailored as applied to its recurring fairs. The City needs information about when and where listeners will gather, expected attendance, equipment, pedestrian routes, and conflicts with other uses. It may ask directly for those facts. Whether an author receives \$100, travel reimbursement, or no payment does not itself answer any of those questions.

The distinction between a scheduled presentation and table conversation is operationally meaningful, but compensation is not necessary to identify it. An application can require schedules and formats for all planned audience presentations without attaching a charge and advance identity commitment only to paid speakers. The stipulated alternatives chart also identifies attendance thresholds, site-specific conditions, loading windows, and focused update duties. The Court does not select a replacement ordinance; those alternatives show the existing fit is not inevitable.

The City's concern about late substitutions is real but insufficiently bounded. A new presentation with a different time, format, equipment need, or expected audience may justify renewed review. A replacement author using the same chair arrangement, time, and format may not. The ordinance and form do not draw that distinction or require a prompt response. An organizer unable to secure advance approval bears the risk that a protected appearance will be lost even when its operational facts remain unchanged.

The fee schedule reinforces the likely mismatch. The \$240 charge is assessed for each covered event, and another \$45 is added for every paid speaker. The City characterizes those amounts as intake, coordination, written-decision, and schedule-review costs. Yet the record does not connect each increment to measured administrative expense, and it shows that actual staff time varies. Adding a sixth speaker raises the charge even if that speaker replaces another in the same slot or draws a smaller audience.

For a six-speaker event the charge is \$510, and six similar dates would total \$3,060. The amounts are not immense in a municipal budget, but the relevant evidence concerns a nonprofit series and small booksellers deciding whether to sponsor authors. The fee burdens more presentations as their number increases. The Guild has shown that repeated modest charges affect honoraria, participation, and invitations. A post-event refund would not recreate an omitted program.

The Court does not hold that all permit fees for expressive uses are unlawful or that every amount must equal an auditor's minute-by-minute calculation. Nor does it prohibit charges tied to demonstrated services or neutral event features. The preliminary conclusion is narrower: the City has not shown, on this record, a sufficient fit between the paid-speaker increments and the administrative burden used to justify them.

The remaining features do not cure the likely tailoring defect. Written reasons are valuable and reduce arbitrary administration, but they arrive after the trigger, deadline, disclosure, and fee have already shaped the program. The categories of crowd, traffic, and municipal resources identify legitimate subjects, yet they do not specify the scope of a condition or require consideration of a less burdensome operational response. Early pilot decisions were neutral, but the sample is too limited to establish how late literary changes will be handled.

Alternative channels are also incomplete. The City suggests unpaid speakers, another site, earlier planning, or a later amendment request. Unpaid participation may exclude authors unable to donate time or travel. Another site does not necessarily provide the same established audience or public access. Earlier planning cannot resolve availability that genuinely arises later. An amendment request without a decision deadline leaves the organizer uncertain during the invitation period.

These conclusions are preliminary and record specific. Discovery may show stronger cost attribution, materially different crowd effects, consistent amendment practice, or another factual basis for the chosen rules. The City may revise its standards. For now, the Guild has demonstrated a likelihood of success on its claim that the challenged regime burdens its paid literary programs more broadly than the City's documented interests justify.

The Guild has also shown likely irreparable harm. The loss of protected expression for even a limited time is not adequately remedied by damages. Here the injury occurs during program formation. Authors and sellers must decide whether to commit, travel, sponsor, and advertise. A later merits judgment cannot recreate a February reading or restore an invitation the Guild declined because approval was uncertain.

The approaching February 14 fair makes the risk concrete. The forty-five-day point passed before every author was confirmed. The Guild has a site plan and historical operating model, but its evidence shows that late additions are common and economically significant. It need not wait for an ideologically motivated denial when the challenged cost and timing rules already govern present choices.

The City argues that it may accept amendments. That possibility mitigates some risk but does not make the harm speculative. No binding time or materiality standard assures a decision before an opportunity expires. The Court credits the City's stated good faith and finds no viewpoint hostility. Constitutional injury can nevertheless arise from a neutral but insufficiently tailored process.

The equities favor limited interim protection. The Guild faces lost programming, repeated charges, and participation decisions that cannot be reversed. The City retains substantial authority to manage Cedar Commons. It may enforce capacity, emergency access, sanitation, traffic, loading, reservation priority, and other neutral requirements based on actual event features. It may obtain schedule, format, location, equipment, and attendance information necessary to exercise that authority.

The Court has not ignored the two medical calls or routine congestion. Those facts support coordination. They do not support treating paid status or a topic line as the measure of operational need. The Guild has committed to keep the service route open, use loading windows, provide contacts, and respond to documented risks. If a future event materially differs from the current record, the City may seek relief based on that change.

The public interest follows the same balance. Residents benefit from safe, predictable access to public space and from free literary events. Interim relief need not choose one at the expense of the other. The order preserves neutral safety measures while preventing the challenged paid-speaker mechanism from determining whether the Guild may present its authors during the litigation.

The scope of relief is confined to the Guild and its announced 2026 Cedar Commons fairs. The Court does not preliminarily enjoin every application of the ordinance to every organizer. Different events may present different records. The City remains free to administer rules governing reservations, total attendance, physical layout, emergency access, vehicle circulation, sanitation, competing uses, and documented material changes.

Within that scope, the City may request and use information about a presentation's time, format, location, equipment, and reasonably expected attendance. It may not use a required paid-speaker name, subject line, or per-speaker payment as the condition for allowing the Guild's program. It may give written reasons for a condition tied to a concrete event risk. These observations explain the relief; they do not enact a substitute municipal code.

The parties should confer promptly about the February 14 event and later dates. The Guild shall provide accurate logistical updates. The City shall identify any proposed condition and the record supporting it. Either party may seek modification if circumstances materially change. The Court retains authority to enforce its order and to consider the merits on a complete record.

Accordingly, the Guild's motion for a preliminary injunction is GRANTED. The City of Norvale, its officers, agents, employees, attorneys, and persons acting in concert with them who receive actual notice are ENJOINED from enforcing the Paid-Speaker Permit Ordinance against the Piedmont Booksellers Guild's announced 2026 Cedar Commons fairs while this action remains pending.

The City may continue to apply neutral, generally applicable requirements concerning reservations, capacity, traffic, emergency access, sanitation, physical layout, competing uses, and materially changed event conditions. The Guild shall continue supplying reasonable logistical information and complying with lawful safety directions. Nothing in this order grants the Guild priority over an existing reservation or permission to obstruct a street, transit stop, or emergency route.

This preliminary injunction takes effect upon entry and remains in effect until superseded by further order or final judgment. The Court makes no final determination of liability, damages, or permanent relief. The parties shall preserve the permit record and notify the Court promptly of a concrete implementation dispute rather than allowing uncertainty to disrupt an event.

So ordered January 23, 2026. The Clerk shall enter this memorandum opinion and order and provide immediate electronic notice to counsel for the Piedmont Booksellers Guild and the City of Norvale.